

2. M-CV-0088489 Synchrony Bank v. Walton, Colleen

Motion to Enforce Settlement under CCP 664.6

Plaintiff's request for judicial notice is granted.

Plaintiff moves the court to enforce the settlement agreement against defendant. Code of Civil Procedure Section 664.6, subdivision (a) provides "[i]f parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6 (a).) Here, plaintiff submits a signed settlement agreement executed between the parties. (See Pl. Decl. Exh. 1.) Pursuant to the terms of the stipulation, defendant was to make payments to the plaintiff. Defendant made payments totaling \$660.00 and stopped making payments required by the stipulation. (Decl. Pl. Counsel ¶¶ 5-6.) Pursuant to the terms of the stipulation, in the event of a default, judgment is to be entered in favor of the plaintiff and against defendant for the principal amount of suit, less a credit for all payments received under the terms of the stipulation. (Decl. Pl. Counsel Exh. 1 ¶ 5.)

The parties signed the agreement, thereby satisfying CCP §664.6's requirement that the settlement be in writing and signed by the parties. The defendant has not submitted an opposition.

Therefore, based on the record, plaintiff's motion to enforce settlement under CCP 664.6 is granted. Plaintiff shall submit a proposed form of judgment.

3. M-CV-0095785 Wani, Prashant v. McFarland, Heather

Defendant's Motion to Vacate Default and Default Judgment

Defendant Heather McFarland moves to set aside the default and the judgment for possession entered on February 11, 2026. (Def. Mot. pg. 3.)

Defendant claims in her motion that she did not refuse to comply with the 3-day notice to pay or quit, but that the plaintiff refused to accept rent. Defendant provides no explanation for her failure to respond to the complaint within the time required by law. Although defendant refers to Code of Civil Procedure section 473.5, she makes no showing that service of summons did not result in actual notice.

Code of Civil Procedure section 473(b) provides:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a